

HOUSE No. 4499

The Commonwealth of Massachusetts

PRESENTED BY:

Sean Garballey and Cindy F. Friedman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing ranked choice voting in the town of Arlington.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>9/9/2025</i>
<i>Cindy F. Friedman</i>	<i>Fourth Middlesex</i>	<i>9/9/2025</i>

HOUSE No. 4499

By Representative Garballey of Arlington and Senator Friedman, a joint petition (accompanied by bill, House, No. 4499) of Sean Garballey and Cindy F. Friedman (by vote of the town) for legislation to authorize ranked choice voting in the town of Arlington. Election Laws. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing ranked choice voting in the town of Arlington.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 503 of the acts of 1952, as most recently amended by section 1 of
2 chapter 10 of the acts of 2022, is hereby further amended by inserting after section 8A the
3 following section:-

4 Section 8B. Ranked Choice Voting

5 (a) For the purposes of this section, the following terms shall, unless the context clearly
6 requires otherwise, have the following meanings:

7 “Concluded ballot”, a ballot that does not rank any continuing candidate or contains an
8 overvote at the highest-ranked continuing candidate.

9 “Continuing candidate”, a candidate who has not been defeated.

“Highest-ranked continuing candidate”, the continuing candidate with the highest ranking on a voter's ballot. Where a ballot omits 1 or more rankings, the next highest ranking shall be used for determining the highest-ranked continuing candidate.

“Overvote”, a circumstance in which a voter ranks more than 1 candidate at the same ranking.

“Ranked choice voting”, a method of casting and tabulating ballots in which voters rank candidates for office in order of preference.

“Ranking”, the number assigned on a ballot by a voter to a candidate to express the voter's preference for that candidate. Ranking number 1 shall be the highest ranking, ranking number 2 shall be the next-highest ranking and so on.

(b) The offices of select board member, school committee member, moderator, elected member of the board of the housing authority and assessor shall be elected by ranked choice voting, except for single-seat offices when the number of candidates printed on the ballot is less than or equal to 2 or multi-seat offices when the number of candidates printed on the ballot is less than or equal to the number of seats to be elected. Rank choice voting elections shall be tabulated in rounds pursuant to this section.

(c) In any single-seat election, each round shall begin by counting the number of votes for each continuing candidate. Each ballot shall count as 1 vote for its highest-ranked continuing candidate. Concluded ballots shall not be counted for any continuing candidate. Each round shall end with 1 of the following 2 outcomes:

(1) If there are 2 continuing candidates, the candidate with the most votes shall be elected, and tabulation shall be complete.

(2) Otherwise, the candidate with the fewest votes shall be defeated and a new round shall begin.

(d) In any multi-seat election, the first seat shall be filled pursuant to the tabulation process established in subsection (c). The remaining seats shall be filled by repeated application of the tabulation process established in subsection (c); provided, however, that all votes marked for candidates who have already been elected shall be disregarded and votes shall be counted for the next highest-ranked continuing candidate.

(e) If 2 or more candidates are tied with the fewest votes such that tabulation cannot continue until the candidate with the fewest votes is defeated, then the tied candidate with the fewest votes in the prior round shall be defeated. If 2 or more such tied candidates were tied with the fewest votes in the prior round, the second tie shall be decided by referring similarly to the number of votes for each candidate in the second-prior round. This process shall be applied successively as many times as necessary. The town clerk shall establish a method of tiebreaking that will be used if 2 or more candidates are tied with the fewest votes in the first round of tabulation.

(f) The town clerk may make any changes, subject to approval by the select board, to the ranked choice voting ballot and tabulation process necessary to ensure the integrity and smooth functioning of the election; provided, that ranked choice voting shall still be used and the fewest number of changes shall be made to achieve such purpose.

(g) The town clerk shall publish election results that show the tabulation by rounds.

52 SECTION 2. (A) The following question shall be placed on the ballot to be used at a
53 regular state or town election or at a special election called for the purpose of presenting the
54 question to the voters:

55 Shall an act entitled "An Act Authorizing Ranked Choice Voting in the Town of
56 Arlington" be accepted?

57 (B) The town attorney shall prepare the summary of the proposed legislation, which shall
58 appear on the ballot along with the question provided in paragraph (A) of this section.

59 (C) If a majority of votes cast in answer to the question is in the affirmative, section 1 of
60 this act shall take effect in the town of Arlington, but not otherwise.

61 SECTION 3. Section 2 shall take effect upon the passage of this act.